

Court No. - 21

Case :- WRIT - C No. - 15881 of 2023

Petitioner :- Anil

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Brij Raj

Counsel for Respondent :- CSC,Udit Chandra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

1.The instant petition has been filed praying for a direction to the respondent-Electricity Department to provide electric connection to the petitioner's premises situated at village and post Chaubeypur, Kandipur, District- Varanasi. The case of the petitioner is that he had applied for electricity connection and the respondents also provided the same to him but later on, they removed the same on a complaint made by the landlord.

2. Shri Udit Chandra, learned counsel for the respondent-Electricity Department does not dispute that a legal occupant of a premises is entitled to apply for electricity connection provided indemnity bond as contemplated under Clause 4.4 of the U.P. Electricity Supply Code is furnished.

3. Shri Udit Chandra, learned counsel for the respondent-Electricity Department very fairly states that, in case, the petitioner furnishes indemnity bond in the prescribed format, the respondent-Department will consider the same.

4. Learned counsel for the petitioner states that the petitioner will submit indemnity bond, if not already filed and prays that a direction be issued to the respondents to provide electricity connection to him.

5. Having regard to the respective stand of the parties, we dispose

of the instant petition by providing that, in case, the petitioner furnishes indemnity bond as per Annexure 4.2 as contemplated under Clause 4.4 of the U.P. Electricity Supply Code, 2005, the respondent-Electricity Department will take decision after hearing the parties in respect of sanction of electricity connection within four weeks.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 10.5.2023

Rama Kant